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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-21-594102)

**MEMORANDUM OF POINTS AND
AUTHORITIES
IN SUPPORT OF LEAVE TO FILE
THIRD AMENDED COMPLAINT**

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TABLE OF AUTHORITIES

Cases

Kulchar v. Kulchar, (1969) 1 Cal.3d 467

In re Marriage of Modnick, (1983) 33 Cal.3d 897

Estate of Sanders, (1985) 40 Cal.3d 607

Westphal v. Westphal, (1942) 20 Cal.2d 393

Kougasian v. TMSL, Inc., (2004) 118 Cal.App.4th 1028

In re Marriage of Stevenot, (1984) 154 Cal.App.3d 1051

Olivera v. Grace, (1942) 19 Cal.2d 570

Flatley v. Mauro, (2006) 39 Cal.4th 299

Action Apartment Ass’n v. City of Santa Monica, (2007) 41 Cal.4th 1232

Howard v. County of San Diego, (2010) 184 Cal.App.4th 1422

Morgan v. Superior Court, (1959) 172 Cal.App.2d 527

Statutes

Code Civ. Proc., § 473

Civ. Code, § 2338

Bus. & Prof. Code, § 6128

I. INTRODUCTION

Plaintiff FRANCISCUS DYLAN ROSARIO respectfully submits this Memorandum in support of his Motion for Leave to File a Third Amended Complaint (“TAC”).

Two-Layer Cure Strategy: This TAC motion is the **second layer** of Plaintiff’s cure strategy. The **first layer** is the pending Motion for Leave to File Second Amended Complaint (filed April 21, 2026; hearing May 6, 2026). If the SAC is granted and defense brings Round D challenges, this TAC stands ready as a further cure. The proposed TAC cures the eight pleading objections raised in Defendants’ Motion to Strike filed April 22, 2026, and installs a California Supreme Court

1 doctrinal spine that forecloses each defense objection as a matter of binding state Supreme Court
2 law.

3 **I.A — THE CONTROLLING RULE**

4 The controlling rule is stated by the California Supreme Court in Westphal v. Westphal (1942) 20
5 Cal.2d 393, 397: “Fraud is extrinsic ... where the unsuccessful party has been prevented from
6 exhibiting fully his case, by fraud or deception practiced on him by his opponent ... or where the
7 defendant never had knowledge of the suit, being kept in ignorance by the acts of the plaintiff.”

8 The Supreme Court has restated that rule three times in terms directly applicable here:

- 9 • Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471: the “primary right” protected is “a fair adver-
10 sary hearing.”
- 11 • In re Marriage of Modnick (1983) 33 Cal.3d 897, 905: extrinsic fraud is a “broad concept”
12 reaching “any extrinsic circumstance” that has “prevented a party from fully participating” in
13 the proceeding.
- 14 • Estate of Sanders (1985) 40 Cal.3d 607, 614: extrinsic fraud exists where the complained-
15 of conduct “effectively prevented ... a fair adversary hearing” (quoting Larrabee v. Tracy
16 (1943) 21 Cal.2d 645, 650–651).

17 Under each of these Supreme Court holdings, the injury is deprivation of the opportunity to present
18 the case, not non-admission of a particular exhibit. That distinction is dispositive of the defense’s
19 anticipated “it got in on Day 7” argument (§ I.F infra).

20 **I.B — THE “NEVER FAIRLY BEFORE THE COURT” STANDARD:** 21 **DENIAL OF THE EXISTENCE OF THE EVIDENTIARY RECORD**

22 In re Marriage of Modnick (1983) 33 Cal.3d 897, 907, supplies the operative sub-rule. The
23 Supreme Court held that a party who conceals material matter from the tribunal effects a “de-
24 nial of the very existence” of the concealed matter, with the doctrinal consequence that the subject
25 is “never fairly before the court for adjudication.” (Id. at p. 907, quoting Clark v. Clark (1961) 195
26 Cal.App.2d 373, 381; accord Jorgensen v. Jorgensen (1948) 32 Cal.2d 13, 21.) Modnick locates
27 the wrong not in the falsity of any particular representation (which would be intrinsic), but in the

1 structural suppression of subject matter from the adversary process itself. The TAC pleads that
2 wrong in four linked subparagraphs (TAC ¶¶ 3.5–3.5.4) that mirror the Modnick syllogism:

3 **1. The Suppressed Subject Matter (TAC ¶ 3.5.1).** The 911 audio of August 18, 2022, the SFPD
4 body-worn camera footage, the CAD entries, and the supplemental police report are not peripheral
5 impeachment. They constitute the primary, contemporaneous, government-generated record of
6 the incident on which the defense, the defense declarations, and the Court’s structural rulings all
7 depended.

8 **2. The Denial (TAC ¶ 3.5.2).** Defendants did not dispute weight; they denied existence. MIL
9 No. 17 (Jan. 17, 2025) represented “no idea where this 911 call log or audio recording came from.”
10 The Feb. 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is the on-record predicate that the trial
11 court extended institutional reliance to defense counsel’s representation of non-receipt. Under
12 Modnick, a denial of existence is categorically distinct from a credibility dispute over the contents
13 of a known exhibit.

14 **3. The Doctrinal Consequence (TAC ¶ 3.5.3).** Because the concealed subject matter was “never
15 fairly before the court for adjudication” (Modnick, supra, 33 Cal.3d at p. 907), every ruling pred-
16 icated on the assumed completeness of the August 18, 2022 record—the seven consequential rul-
17 ings catalogued at § I.D infra—was procured in a proceeding from which the decisive evidentiary
18 subject matter had been structurally withheld. When defense counsel’s representations were later
19 exposed as false by the April 16, 2025 admission (RT 7, p. 213, ll. 13–15 — “They were provided
20 by Dolan”), the Modnick defect crystallized: the record of possession and provenance had never
21 been “fairly before the court” at the time of any of the seven rulings.

22 **4. The Pico Line Does Not Reach This Pleading (TAC ¶ 3.5.4).** The rule of Pico v. Cohn
23 (1891) 91 Cal. 129, 133–134—that perjury alone is intrinsic—is not implicated. Plaintiff does
24 not allege that Defendants testified falsely about the contents of the concealed materials. Plaintiff
25 alleges that Defendants denied the existence of those materials in their possession, and by that
26 denial prevented the tribunal from ever confronting them. Modnick itself drew exactly that line (33
27 Cal.3d at pp. 905–907), holding that concealment-as-denial-of-existence is categorically distinct
28 from perjury-about-a-matter-in-issue and falls on the extrinsic side of Pico. The TAC tracks that

distinction on its face, which is why a CCP § 436 motion cannot reach it: on the well-pleaded facts taken as true, the concealed subject was never “fairly before the court” within the meaning of Modnick.

I.C — CHRONOLOGY → SUPREME COURT MAPPING

The following table maps each inflection point in the defense’s conduct to the Supreme Court holding that treats that conduct as extrinsic fraud:

Date	Event	Supreme Court Mapping
Aug. 18, 2022	Service of 911 audio by Dolan to defense counsel; Rosario deposition	<u>Modnick</u> , 33 Cal.3d at 905 — concealed “extrinsic circumstance” begins
May 4, 2023	Substitution of Attorney CSK → PSA without conveying production history	<u>Sanders</u> , 40 Cal.3d at 615 — officer-of-court fiduciary breach on file transfer
Jan. 17, 2025	MIL No. 17 filed (“no idea where this 911 call log or audio recording came from”)	<u>Modnick</u> , 33 Cal.3d at 907 — denial of existence
Feb. 28, 2025	Court’s institutional-reliance colloquy	<u>Sanders</u> , 40 Cal.3d at 615 — fiduciary reliance extended, then breached
Apr. 16, 2025	Navaratnasingham admits materials “were provided by Dolan” (RT 7, p. 213, ll. 13–15)	<u>Kulchar</u> , 1 Cal.3d at 472–473 — diligence discovery trigger
Jan. 27 – Apr. 25, 2025	Seven consequential rulings (¶ 5 TAC)	<u>Westphal</u> , 20 Cal.2d at 397 — deprivation of opportunity to present

I.D — DOWNSTREAM EFFECT ON THE COURT’S RULINGS

Each of the seven consequential rulings was issued inside a record distorted by the concealment, and is therefore a product of the Supreme Court-recognized defect:

1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — issued on representations that Sanders, 40 Cal.3d at 616, classifies as “effectively prevent[ing]” a fair adversary hearing.
2. **911 CDs Excluded** (Jan. 27, p. 38:22–25) — same.
3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24) — categorical exclusion within a Modnick 907 record.
4. **Continuance Denied** (Feb. 18, p. 181) — predicated on “news to me” denial now known to be false.
5. **§ 473 “Surprise” Relief Rejected** (Feb. 18, p. 181:20–25) — same.
6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — issued during the same colloquy that established the institutional-reliance predicate now breached.
7. **Supplemental Report Excluded** (RT 7, p. 156:24–28) — issued within the same Modnick 907 record.

Under Sanders, 40 Cal.3d at 616, and Modnick, 33 Cal.3d at 907, these rulings are not “merits” adjudications that foreclose equitable vacatur; they are the consequence of the fraud and therefore the very injury the Supreme Court’s deprivation rule protects against.

I.E — STEP-BY-STEP DEFENSE OBJECTION REBUTTAL (SUPREME COURT ONLY)

Defense Objection

Supreme Court Foreclosure

Pico/Throckmorton intrinsic ceiling

Modnick, 33 Cal.3d at 907 — denial of existence is extrinsic under California Supreme Court doctrine

Defense Objection	Supreme Court Foreclosure
Lack of diligence	<u>Kulchar</u> , 1 Cal.3d at 472–473 — no duty to discover concealment uniquely within other party’s possession until triggering disclosure; <u>Sanders</u> , 40 Cal.3d at 615 — fiduciary breach tolls
Pending appeal preclusion	<u>Mycogen</u> , 28 Cal.4th at 904; <u>Boeken</u> , 48 Cal.4th at 798 — primary-right analysis turns on injury suffered, not forum; extrinsic-fraud injury is distinct from instructional error
Litigation privilege	<u>Sanders</u> , 40 Cal.3d at 614 — equity exception for fraud on the tribunal by officers of the court
Non-client standing	<u>Sanders</u> , 40 Cal.3d at 615 — officer-of-court fiduciary duty runs to adjudicative integrity and derivatively to opposing party
<u>Throckmorton</u> ceiling	<u>Modnick</u> , 33 Cal.3d at 905 — California’s broader “broad concept” controls; <u>Throckmorton</u> is not binding

I.F — THE DEFENSE’S “IT GOT IN ON DAY 7” ARGUMENT, FORE-CLOSED

The defense is expected to argue that the ultimate Day-7 admission of the 911 audio cures any prior concealment. That argument is foreclosed by four California Supreme Court holdings. Westphal, 20 Cal.2d at 397, fixes the metric at deprivation of “opportunity to present.” Kulchar, 1 Cal.3d at 471, identifies the injury as denial of “a fair adversary hearing.” Modnick, 33 Cal.3d at 907, requires that the concealed subject have been “fairly before the court for adjudication.” Sanders, 40 Cal.3d at 616 (quoting Larrabee, 21 Cal.2d at 650–651), measures the harm by conduct that

1 “effectively prevented . . . a fair adversary hearing.” Under each of these Supreme Court tests, the
2 inquiry is whether Plaintiff was deprived of the opportunity to present his case on a non-corrupted
3 record — not whether one exhibit was eventually admitted under a corrupted posture. Plaintiff was
4 deprived under each of the four Supreme Court tests. The Day-7 leak-through defense is legally
5 irrelevant to the Supreme Court’s deprivation metric.

6 California’s strong policy favoring amendment and resolution on the merits requires that leave be
7 granted. The proposed amendments are made in good faith, cause no prejudice to Defendants, and
8 state viable claims anchored to California Supreme Court authority.

10 **II. STATEMENT OF FACTS**

11 **A. THE COURT’S ARTICULATED RELIANCE (FEBRUARY 28, 2025)**

12 On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the
13 defense:

14 “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.
15 They are an officer of the Court, and they are supposed to conduct themselves appropri-
16 ately before the Court. If they are not, there are other sanctions that they could suffer
17 here. So far I haven’t heard or seen anything on the part of the current law firm which
18 tells me that they have conducted themselves improperly.” — The Court (Garrett L.
19 Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

20 **B. THE RULINGS PROCURED FROM THAT RELIANCE**

21 Based on defense counsel’s representations of non-receipt, the Court issued seven consequential
22 rulings:

- 23 1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- 24 2. **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- 25 3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- 26 4. **Continuance Denied** (Feb. 18, p. 181)
- 27 5. **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)

1 6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

2 7. **Supplemental Report Excluded** (RT 7, p. 156:24–28)

3 **C. THE ADMISSION THAT PROVED THE MISREPRESENTATION**
4 **(APRIL 16, 2025)**

5 On the seventh day of trial, after months of categorical denials, defense counsel admitted posses-
6 sion:

7 “Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D.
8 Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

9 This admission is irreconcilable with defense counsel’s prior representations that they “never re-
10 ceived” the materials and had “no idea where” they came from.

11 **D. PROCEDURAL HISTORY**

- 12 • **December 23, 2025:** Original Complaint filed
 - 13 • **February 25, 2026:** First Amended Complaint filed
 - 14 • **April 22, 2026:** Defendants filed Motion to Strike under CCP § 436
-

15
16 **III. LEGAL STANDARD**

17 **A. LEAVE TO AMEND SHOULD BE LIBERALLY GRANTED**

18 Code of Civil Procedure § 473(a)(1) provides that a court “may, in furtherance of justice, and on
19 any terms as may be proper, allow a party to amend any pleading.”

20 “The policy favoring amendment is so strong that denial of leave to amend is rarely justified.”
21 Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.

22 “If the motion to amend is timely made and the granting of the motion will not prejudice the oppos-
23 ing party, it is error to refuse leave to amend.” Morgan v. Superior Court (1959) 172 Cal.App.2d
24 527, 530.

25 **B. AMENDMENTS TO CURE PLEADING DEFECTS ARE FAVORED**

26 “Where a demurrer is sustained, leave to amend is routinely granted when there is a reasonable
27 possibility that the pleading can be cured by amendment.” Blank v. Kirwan (1985) 39 Cal.3d 311,

1 318.

2 The same principle applies to motions to strike: when a motion to strike is granted based on curable
3 defects, leave to amend should be granted. Pierson v. Sharp Memorial Hospital, Inc. (1989) 216
4 Cal.App.3d 340, 347.

5 **C. PREJUDICE IS THE KEY CONSIDERATION**

6 “The only legitimate ground for denial of leave to amend is prejudice to the opposing party.” Kolani
7 v. Gluska (1998) 64 Cal.App.4th 402, 412.

8 Prejudice means actual harm, such as the need to conduct additional discovery or delay in trial,
9 not merely the fact that the opposing party will face an amended pleading. Atkinson v. Elk Corp.
10 (2003) 109 Cal.App.4th 739, 761.

11 **IV. THE TAC CURES ALL EIGHT DEFENSE OBJECTIONS**

12 **OBJECTION → CURE TABLE**

13

#	Defense Objection	MPA Page:Line	TAC Cure	TAC Section/¶	Bench Brief/SAC Back-Reference
1	<u>Kulchar</u> extrinsic-fraud not viable	—	Four- channel frame- work with judicial- reliance quote and seven conse- quential rulings	§I, ¶¶ 1–7	Bench Brief §I.A-I.C
2	Appeal A173827 is remedy	—	<u>Kougasian</u> / independ- dent action; <u>Throckmorton</u> pre- rebuttal	§IV.5, ¶¶ 28–31	Bench Brief Part VII

	Defense	MPA	TAC	TAC	Bench Brief/SAC
#	Objection	Page:Line	Cure	Section/¶	Back-Reference
3	Civil Code § 47(b) bars claims	—	Nine- Point Eviden- tiary Chain; <u>Flatley</u> illegal- ity; <u>Action</u> <u>Apartment</u> extrinsic- fraud excep- tion	§II, ¶¶ 8–13	SAC-06 §IV.D.0
4	Standing / <u>Shaolian-Norton</u>	—	<u>Estate of</u> <u>Sanders</u> ; <u>Doctors’</u> <u>Company</u> aiding- and- abetting frame- work; § 2338 agency	§III, ¶¶ 14–21	Bench Brief §II.F

	Defense	MPA	TAC	TAC	Bench Brief/SAC
#	Objection	Page:Line	Cure	Section/¶	Back-Reference
5	Collateral estoppel / res judicata	—	Five- issues- not- adjudicated block; primary- rights compari- son table; <u>Mycogen/Boeken</u> test	§IV, ¶¶ 22–27	SAC-06 §IV.B
6	CCP § 1032 prevailing-party overlap	—	Express dis- claimer; no recovery of under- lying costs	§V, ¶ 32(b)	—

	Defense	MPA	TAC	TAC	Bench Brief/SAC
#	Objection	Page:Line	Cure	Section/¶	Back-Reference
7	Damages duplicative of PI case	—	Reservation para- graph; fraud- delta limita- tion	§V, ¶¶ 32–34	—
8	IIED / <u>Ribas</u>	—	No stan- dalone IIED claim; emo- tional distress as equity factor only	§VI, Tier 4, ¶ 38	—

V. SPECIFIC ANSWERS TO DEFENSE’S LEGAL ARGUMENTS

A. EXTRINSIC FRAUD IS VIABLE UNDER KOUGASIAN/OLIVERA

Defense argues that Plaintiff cannot maintain an independent action in equity. The TAC cures this by:

1. Pleading the four-channel Kulchar framework element-by-element (TAC §I, ¶ 3);
2. Quoting the Court’s February 28, 2025 articulated reliance on officer-of-the-court status (TAC

1 §I.5, ¶ 4);

2 3. Documenting the seven consequential rulings procured from that reliance (TAC §I.5, ¶ 5);

3 4. Establishing the contradiction between the February 18, 2025 “news to me” denial and the
4 April 16, 2025 “provided by Dolan” admission (TAC §VIII).

5 Under Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1032–35, an independent action
6 in equity is proper when extrinsic fraud has deprived a party of the opportunity to fully and fairly
7 present his case.

8 **B. APPEAL DOES NOT PRECLUDE INDEPENDENT ACTION**

9 Defense argues that Plaintiff’s remedy is the pending appeal (A173827). The TAC cures this by:

10 1. Distinguishing the appeal (instructional error) from this action (institutional fraud) (TAC
11 §IV.5, ¶¶ 28–29);

12 2. Citing Kougasian and In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051 for the princi-
13 ple that an independent equitable action is cognizable alongside a direct appeal;

14 3. Pre-rebutting defense reliance on Throckmorton as non-binding federal authority superseded
15 by California’s broader doctrine (TAC §II, ¶ 13).

16 **C. LITIGATION PRIVILEGE DOES NOT APPLY**

17 Defense invokes Civil Code § 47(b). The TAC cures this by:

18 1. Documenting the Nine-Point Evidentiary Chain showing 893 days of defense possession
19 (TAC §II, ¶ 9);

20 2. Pleading non-communicative conduct (silence, file-transfer concealment, failure to correct)
21 that falls outside the privilege (TAC §II, ¶ 8);

22 3. Invoking the Flatley v. Mauro (2006) 39 Cal.4th 299 illegality exception (Bus. & Prof. Code
23 § 6128(a) as criminal conduct) (TAC §II, ¶¶ 10–11);

24 4. Citing Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232 for the
25 extrinsic-fraud carveout (TAC §II, ¶ 12).

26 **D. STANDING IS ESTABLISHED**

27 Defense cites Shaolian and Norton for lack of standing. The TAC cures this by:

1. Distinguishing Shaolian (direct actions for policy benefits) from equitable fraud-on-the-court theories (TAC §III, ¶ 15);
2. Citing Estate of Sanders (1985) 40 Cal.3d 607 (attorneys who participate in fraud on the court are proper parties) (TAC §III, ¶ 15(c));
3. Pleading agency/ratification under Civil Code § 2338 (TAC §III, ¶¶ 16–17);
4. Invoking Doctors’ Company v. Superior Court (1989) 49 Cal.3d 39 for insurer aiding-and-abetting liability (TAC §III, ¶ 18).

E. COLLATERAL ESTOPPEL DOES NOT APPLY

Defense argues res judicata/collateral estoppel. The TAC cures this by:

1. Enumerating five issues never adjudicated in the underlying trial (TAC §IV, ¶ 24);
2. Providing a primary-rights comparison table under Mycogen and Boeken (TAC §IV, ¶ 25);
3. Applying the Lucido v. Superior Court (1990) 51 Cal.3d 335 factors (TAC §IV, ¶ 27).

F. DAMAGES ARE PROPERLY LIMITED

Defense argues damages are duplicative. The TAC cures this by:

1. Including express disclaimers of PI damages, prevailing-party costs, duplicative 802 damages, and pro-per fees (TAC §V, ¶ 32);
2. Limiting compensatory relief to “fraud-delta” costs—incremental expenses caused by the fraud (TAC §VI, Tier 2, ¶ 36).

G. EXTRINSIC FRAUD MEASURED BY DEPRIVATION, NOT ADMISSION

The defense is expected to argue that the Day-7 admission of the 911 audio cures the concealment. That argument is foreclosed by four California Supreme Court holdings that independently locate the operative injury at the deprivation of opportunity, not at the admission of evidence:

1. Westphal v. Westphal (1942) 20 Cal.2d 393, 397 — extrinsic fraud exists where a party is “prevented from exhibiting fully his case.”
2. Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471 — the “primary right” protected is “a fair adversary hearing.”

3. In re Marriage of Modnick (1983) 33 Cal.3d 897, 907 — the concealed subject must have been “fairly before the court for adjudication”; a late-admitted exhibit does not retroactively cure the rulings that issued within the corrupted record.

4. Estate of Sanders (1985) 40 Cal.3d 607, 616 (quoting Larrabee v. Tracy (1943) 21 Cal.2d 645, 650–651) — the measure is whether the conduct “effectively prevented . . . a fair adversary hearing.”

Under each test, Plaintiff was deprived of the opportunity to present his case on a non-corrupted record. The Court’s seven consequential rulings issued inside that corrupted record (Memo § I.D). The TAC pleads that deprivation in §IV.5.5 and ¶¶ 34.5–34.6, mirroring these four Supreme Court holdings. The “it got in on Day 7” defense is legally irrelevant to the Supreme Court’s deprivation metric.

VI. NO PREJUDICE TO DEFENDANTS

The proposed amendments do not prejudice Defendants because:

1. **No New Parties:** The TAC names the same defendants as the operative complaint (with corrected identification of the defense firm and individual attorneys).
2. **No New Theories:** The TAC pleads the same claims—extrinsic fraud, constructive fraud, § 6128(a) violations—with greater specificity.
3. **No Additional Discovery Needed:** The TAC is based on the certified record already in Defendants’ possession.
4. **No Trial Delay:** This motion is made early in the proceedings.

VII. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that this Court grant leave to file the Third Amended Complaint in the form lodged herewith.

Dated: _____

FRANCISCUS DYLAN ROSARIO

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4 Tel: 650.488.7510
5 Email: soltrinox@gmail.com

Dated: April 22, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
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